

ATTACHMENT 2 – FHWA SUBCONTRACTING PLAN TEMPLATE

1. INSTRUCTIONS:

- Where subcontracting opportunities will not exist for the solicitation, the bidder/offeror shall submit a response outlining the rationale for making this determination with its proposal/bid. The statement shall be signed by an official authorized to make decisions on behalf of the firm.
- The following information shall be provided in the bidder/offeror subcontracting plan submission and shall be expressed in terms of goal percentages of the total planned subcontracting dollars.
- Text lines may be added to this template as needed.

SUBCONTRACTING GOALS – BASE YEAR		
Total prime contract amount – Base Year:	\$ [insert amount]	
Total planned subcontracted amount (regardless of firm/entity size status) – Base Year:	\$ [insert amount]	
Total planned subcontracts to “other than small business” concerns (i.e., large, non-profit, university, etc.)	\$[insert amount]	[insert #]% ¹
Total planned subcontracts to Small Business concerns:	\$[insert amount]	[insert #]% ²
• Total planned subcontracts to Veteran Owned Small Business concerns (VOSB) ³ :	\$[insert amount]	[insert #]%
○ Total planned subcontracts to Service-Disabled Veteran Owned Small Business (SDVOSB) concerns:	\$[insert amount]	[insert #]%
• Total planned subcontracts to Historically Underutilized Business Zones (HUBZones):	\$[insert amount]	[insert #]%
• Total planned subcontracts to Small Disadvantaged Business (SDB) concerns (includes 8(a), Alaska Native Corporations (ANC), and Indian Tribes):	\$[insert amount]	[insert #]%
• Total planned subcontract awards to Women-Owned Small Business concerns (WOSB) ⁴ concerns:	\$[insert amount]	[insert #]%

**insert and complete additional tables if the contract includes option year(s).*

¹ Percentage = (subcontracted amount in the category/total planned subcontracted amount)

² Planned subcontracts to “other than small business” concerns + subcontracts to Small Business concerns = 100%

³ SDVOSB is a subcategory of VOSB. Any dollar amount applied to SDVOSB also applies to VOSB.

⁴ In this document, the term WOSB includes Economically Disadvantaged WOSB (EDWOSB) concerns.

1.1 Rationale if establishing a goal lower than 5% for VOSB:

1.2 Rationale if establishing a goal lower than 5% for SDVOSB:

1.3 Rationale if establishing a goal lower than 3% for HUBZone:

1.4 Rationale if establishing a goal lower than 5% for SDB:

1.5 Rationale if establishing a goal lower than 5% for WOSB:

1.6 Rationale if establishing a goal lower than the current [DOT subcontracting goal](#):

2. The following principal types of supplies and/or services are planned to be subcontracted under this contract. **[Add additional rows if more space is needed.]**

Type of Supply/Service to be Subcontracted	Company/Firm Name	Subcontracted Amount	Subcontractor Size Standard (Other Than SB, SB, VOSB, SDVOSB, HUBZone, SDB, WOSB) ⁵

⁵ List all applicable size standards for each proposed subcontractor.

3. The following methods were used to develop the subcontract percentage goals:

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4. The following methods were used to identify potential subcontract sources for solicitation purposes. (i.e. source lists used and organizations contacted to identify potential SB concerns, such as the System for Award Management (www.SAM.gov), Dynamic Small Business Search (www.DSBS.sba.gov), trade associations, industry conferences/fairs, etc.)

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5. **[Select appropriate option.]** Indirect costs [**were/were not**] included in establishing the subcontracting goals specified in the table above.

6. If indirect costs were included, the following method was used to determine the proportionate share of indirect costs to be incurred with SB, VOSB, SDVOSB, HUBZone, SDB and WOSB subcontractors:

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7. The following individual will administer the subcontracting program:

Name:	
Title:	
Address:	
Telephone:	
E-mail:	

This individual's specific duties, as they relate to the subcontracting program, are as follows:

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8. The following efforts will be taken to ensure that SB, SDB, VOSB, SDVOSB, HUBZone, and WOSB subcontractors will have an equitable opportunity to compete for subcontracts:

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☐ [initial] It is agreed that FAR Clause 52.219-8, Utilization of Small Business Concerns, will be included in all subcontracts, which offer further subcontracting opportunities. It is further agreed that all subcontractors (except small business concerns) at all tiers below the prime contractor who receive subcontracts in excess of \$750,000 (\$1.5M for construction of any public facility with further subcontracting possibilities) will be required to adopt and comply with a subcontracting plan in accordance with FAR Clause 52.219-9.

9. The following types of records will be maintained concerning procedures that have been adopted to comply with the requirements and goals in the plan (i.e., establishment of source lists, guides and other data that identify SB, VOSB, SDVOSB, HUBZone, SDB and WOSB concerns; a description of the offeror's efforts to locate SB, VOSB, SDVOSB, HUBZone, SDB and WOSB concerns and to award subcontracts to them, etc.) and shall be maintained through completion of the contract:

10. In accordance with FAR Subpart 19.704(a)(10) through (15), the Contractor further agrees to:

[Initial each line]

- ☐ Cooperate in any studies or surveys as may be required;
- ☐ Submit periodic reports as may be required so that the Government can determine the extent of compliance by the Contractor with the subcontracting plan;
- ☐ After November 30, 2017, include subcontracting data for each order when reporting subcontracting achievements for indefinite-delivery, indefinite-quantity contracts intended for use by multiple agencies;
- ☐ Submit the Individual Subcontract Report (ISR), and the Summary Subcontract Report (SSR) using the Electronic Subcontracting Reporting System (eSRS) at <http://www.esrs.gov/> within the timeframes identified at FAR Subpart 19.704(a)(10)(iv);
- ☐ Ensure that other than small business subcontractors with subcontracting plans agree to submit eSRS documents online as required;
- ☐ Provide its prime contract number and its unique entity identifier, and the e-mail address of the offeror's official responsible for acknowledging receipt of or rejecting the ISRs to all first-tier subcontractors with subcontracting plans so they can enter this information into the eSRS when submitting their ISRs;
- ☐ Require that each subcontractor with a subcontracting plan provide the prime contract number, its own unique entity identifier, and the e-mail address of the subcontractor's official responsible for acknowledging receipt of or rejecting the ISRs, to its subcontractors with subcontracting plans;

- ☐ Make a good faith effort to acquire articles, equipment, supplies, services, or materials, or obtain the performance of construction work from the small business concerns that the offeror used in preparing the bid or proposal, in the same or greater scope, amount, and quality used in preparing and submitting the bid or proposal;
- ☐ Provide the contracting officer with a written explanation if the contractor fails to acquire articles, equipment, supplies, services or materials or obtain the performance of construction work as described in FAR 19.704(a)(12) of this section. This written explanation will be submitted to the contracting officer within 30 days of contract completion;
- ☐ Will not prohibit a subcontractor from discussing with the contracting officer any material matter pertaining to payment to or utilization of a subcontractor; and
- ☐ Pay its small business subcontractors on time and in accordance with the terms and conditions of the subcontract, and notify the contracting officer if the offeror pays a reduced or an untimely payment to a small business subcontractor (see FAR [52.242-5](#)).

Submitted by:

POC Name:	
Title:	
Email Address:	
Company Name:	
UEI:	
Mailing Address:	

Signature